

San Ramon (2004) 120 Cal.App.4th 1141; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal.App.3d Supp. 29.)

13. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. (“Capitol City”) moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

A motion to set aside default “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]” (Code Civ. Proc., § 473, subd. (b).) Here, Capitol City did not provide any proposed responsive pleading with its moving papers. Rather than deny the motion outright due to this procedural deficiency, the court on its own motion continues this motion to **September 8, 2026 at 8:30 a.m. in Department 32**. Defendant Capitol City is directed to submit a proposed responsive pleading by August 21, 2026. Defendant Capitol City shall also file and serve a notice of continued hearing and file a proof of service by August 21, 2026. No additional briefing is permitted. The court intends to reach the substance of the motion at the continued hearing.

14. T-CV-0002823 In Re the Petition of No. Tahoe Pub. Utilities Dist.

Petition for Leave to File a Late Government Claim Pursuant to Government Code §946.6

Background

Petitioner alleges on July 18, 2024, a sewer main owned by petitioner was punctured underneath North Lake Boulevard in Carnelian Bay, California. Petitioner alleges the puncture was caused by a California Department of Transportation’s (Caltrans) contractor who was performing excavation activities in connection with a Caltrans project. Petitioner filed government claim alleging damages related to that puncture on July 18, 2025. (Opp’n at 2.)

Legal Standard

A suit for money or damages against a California public entity may not be brought “until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board . . .” (Gov. Code, § 945.4.) A claim for injury to real property must be presented within one year of the

incident. (Gov. Code, § 911.2, subd. (a)). Claims for injury to personal property must be presented within six months of the incident. (Gov. Code, § 911.2, subd. (a)). If a claim for injury to personal property is not presented within six months, a written application may be made to a public entity for leave to present a late claim within a reasonable time but no more than one year after the incident. (Gov. Code, § 911.4, subd. (a)-(b).) If an application for leave to present a late claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. (Gov. Code, § 946.6, subd. (a).) The petition to court must be filed within six months after the application to the board is denied or deemed to be denied under Section 911.6. (*Id.*, subd. (b).)

In deciding whether to grant the petition, the court must determine that the claimant's application for leave to present a late claim was brought within a reasonable time, not to exceed one year. (Gov. Code § 946.6, subd. (c)). Then, the court, must find that one of six excusable scenarios occurred. The first scenario applies here, "[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4. . ." (Gov. Code, § 946.6(c)(1).) The showing required for relief under Government Code section 946.6(c)(1) because of mistake, inadvertence, surprise, or excusable neglect is the same as required under Code of Civil Procedure section 473 for relieving a party from a default judgment. (*Lutz v. Tri-City Hospital* (1986) 179 Cal.App.3d 807, 810-11; *Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 438; *Viles v. State of California* (1967) 66 Cal.2d 24, 29.) Relief under section 946.6 is appropriate where the claimant or counsel justifiably relies on someone else, but that third party errs or otherwise causes the delay. (*Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 912.)

Analysis

Similar to *Renteria*, in this case, the district relied upon its insurance carrier's statements that it would file a government claim on behalf of the district. The insurance carrier represented that the claim would be covered and it would be subrogated to Caltrans. ((Johnson Decl., ¶ 10.) The insurance carrier indicated it would subrogate the claim to Caltrans, and it would submit the necessary government claim. (*Id.*) District staff reminded the insurance carrier of the need to submit a government claim and checked on the status of the claim with the insurance carrier. (*Id.*) After the insurance carrier informed the district that no government claim had been filed on July 15, 2025, the district and its counsel acted diligently to file a claim in three days, by July 18, 2025. (*Id.*, ¶¶ 11-13.) Thus, the district acted as a reasonably prudent person would to investigate and pursue a claim against Caltrans for damage to the pipeline. Its failure to file a claim within six months was due to the district's reasonable belief that its insurance carrier had already filed the claim on its behalf. The delay was a result of mistake, inadvertence, surprise, or excusable neglect. For these reasons, petitioner requests relief to file a late claim is appropriate under Government Code section 946.6.

In opposition, respondent states this petition should be denied because no justiciable controversy exists. Petitioner's claim for real property damage was filed within the one year of the "accrual of the cause of action" as required under Government Code § 911.2. Therefore, respondent states no relief from the Government Code § 945.4 is necessary nor justified.

In reply, petitioner states Caltrans does not dispute the evidence establishing the district's entitlement to relief under the Government Claims Act to file a claim for personal property. The district owns and controls the force main (Johnson Decl., ¶ 3); the pipe serves the district's independent sewer system rather than the State highway through which it passes (*ibid*); and there is no evidence that the district intended to surrender ownership or make the pipe a permanent accession to the State's land. (*City of Vallejo v. Burrill* (1923) 64 Cal. App. 399, 407; *Taylor v. Heydenreich* (1949) 92 Cal. App.2d 684, 688.) Petitioner also identifies other specific personal property allegedly damaged by respondent which may be subject to petitioner's claim.

Conclusion

The petition is granted. The court makes no findings at this time regarding the appropriate characterization of the sewer force main. Petitioner is relieved from the requirements of Government Code section 945.4 with respect to its late-presented claim for injury to personal property.
